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Virginia Board of Education, Business Meeting, Thursday, October 19, 2023

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=9M4lUs3zJaM
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:09:05] It's 9 a.m. and I'll now call this meeting to order. I will note that I have approved the remote participation of Dr. Alan Siebert under the board bylaws and 2.2-3708.3B3 of the Code of Virginia because this principal residence is more than 60 miles away from our meeting location here.

[00:09:26] As customary for this board, we will begin our meeting with a moment of silence followed by the Pledge of Allegiance. I pledge allegiance to the flag of the United States of America, with the republic for which it stands, one nation of the good God, indivisible, with liberty and justice for all.

[00:10:07] Okay, so we are moving on to approving the agenda as presented. May I get a motion on the approval of the agenda? I'll move. Second. Okay, Ms. Kilgore. Aye.

[00:10:23] Ms. Walton. Aye. Dr. Siebert. Aye. Mr. Hanson, Ms. Ashton, Dr. Northern, Mr. Sturdifant, Mr. Rotherham, and Chair votes aye.

[00:10:38] Okay, and staff has also provided to the members of the board our meeting minutes draft from our last meeting. Can I get a motion to approve those meeting minutes, please?

[00:10:59] Okay, Ms. Kilgore, Ms. Walton. yes with the clarification that i'll just state for the record that the board the minutes do refer to a number of items on accountability as final review and i think it was clear

in our discussion last month that we were moving forward for further development of those items so i don't need us to amend them but i'll just take that for the record as part of my yes okay dr siebert hi mr hanson

[00:11:29] ms ashton hi dr northern hi mr certifan mr rotherham and chair votes i okay as we move on with this morning as stated in the board's bylaws it is my pleasure to accept public comment this morning on all matters related to public education in virginia we ask that you provide your name and affiliation at the beginning of your remarks and speakers must limit their comments to three minutes and as you all have mostly gotten used to we have our new timekeeping system so you will see

[00:12:03] as you see on the screen now the time will count down for you so you'll notice that the timer on the screen begins at three minutes in green at one minute the screen will turn yellow and the screen will turn red when your time is up at that point please close your remarks promptly speakers can provide their written comments or anything that you would like to provide to the board to mr joe crook sitting right here in the front and anything that you do not have to share physically with the board but would like to email to the board please do email a copy of your

[00:12:41] remarks or anything that you have electronically that you'd like for the board to receive to mr jim chapman director of board relations um just as a housekeeping matter i'd also like to note that at 10 19 a.m this morning there's supposed to be an earthquake drill this is a national drill and what will it shouldn't include any kind of building announcements but some people may get some kind of hanging on their phone or something that might happen as you all know have experienced so many of these particular alert systems i know i was recently in the atlanta

[00:13:21] airport when um the last alerts went out and the entire airport was just crazy how loud it was um but we would just ask that at this point you please silence your phones and we'll continue the meeting through the drill um it shouldn't make us do anything but just as a heads up to everybody in the room okay so as we begin this morning i would like to begin with candace lucas followed

[00:13:48] by Kathy Alverson, please. Good morning, board members. And to the new board members, welcome.

[00:14:06] My name is Candace Lucas. I am a licensed educator and administrator through the Virginia Department of Education. I've been licensed and certified since 2002. I'm here once again to talk about special education. I understand, Dr. Coons, that you spent almost $100,000 for two reports that told you what we've been telling you for the last six months.

[00:14:34] So I want to go ahead and note that the report was not surprising at all. It does demonize advocates who stand up for the rights of families. And I did see that school divisions don't like us as advocates. That's like when my ancestors, because I do understand the assignment, my ancestors asserted our rights by attempting to go to schools in Virginia when they were told they were not able to through the massive resistance movement.

[00:15:03] That's exactly what we're experiencing now as we go to the schools to fight for children with disabilities. I've been arrested seven times in three different jurisdictions attempting to attend an IAP meeting because the school divisions do not want our parents to have advocates that can educate them on their rights.

[00:15:25] Okay, and we've all heard it said before. We've reported all of this to the professional practices department in the Virginia Department of Education, and nothing gets done. We've documented over 2,000 incidences of falsified IEP documents, 2,000 incidents of forged documents.

[00:15:46] Sent them straight to Dr. Coons before her bailout, and none of them have been addressed. Professional practices does not address it. And I guess my concern is that we're the only state agency that licenses individuals but can't discipline them unless, you know, they falsify a SOL score or, you know, sexual abuse a child.

[00:16:09] But when we talk about the day-to-day issues of falsifying IEPs, that should be criminal. It is criminal. It is criminal. So when are we going to hold the people that do it accountable? Because they do it with impunity now. They falsify the December 1 count that's coming up.

[00:16:26] It's going to be falsified, just so you know, Dr. Coombs. And the superintendents, who you guys say are the experts, they're not. They're not the experts. The parents are the experts about what goes on in our schools. I heard the conversation yesterday. And the bottom line with all of this is until you start listening to parents, which the gentleman that you had do the report, he contacted our advocacy group, but never spoke to us.

[00:16:53] and I have over 500 black, white, Latino advocates. He never even spoke to us. So I wanna make sure you understand that, that special education is still in crisis and you guys are still going through the same rigmarole.

[00:17:10] - And you can hand those out. Can you hand those out to them? - Thank you. I thought you had done that already. - Kathy Halverson, followed by Tammy C.

[00:17:37] - Well, good morning board. I thought maybe I would have these so you could look at them while I'm talking about them. picture of my son still waiting for contract to be sent, Dr. Coons. This was a picture that I told him he was finally going to school. You saw that smile on his face. He was overcome with emotion because he finally was going to go to school after 664 days. Here's an invoice from Sands

[00:18:10] Anderson. In one month, I FOIA'd all about my son. In one month, August, $27,000 to fight me. Seven attorneys block billing to fight me, but they can't pay for my son to go to school.

[00:18:33] I FOIA'd stuff from the BDOE June 23, 2023 from Samantha Hollins. Sends a letter to Powhatan stating you have two weeks to send documentation to believe in you, stating he's there. Nothing happened. Powhatan responded July the 7th. They literally admit on this letter they filed a child in need of supervision against my husband and I because they want to be deadbeat parents. It would

[00:19:13] take 10 decades to educate my son because I would not sign the CSA consent. Egregious. Disgusting. Then I receive a letter August 28th, and we met Dr. Coons, personal meeting, and you promised me that things would be taken care of.

[00:19:39] And you knew about Samantha's letter. August 28th, letter from Lisa Coons says, in 30 days, I need documentation that a contract has been sent or federal funding was going to be taken.

[00:19:58] I have called the VDOE. I have emailed you, Lisa Coons. I've emailed Samantha. And the only thing I get really is nothing. It's copy and paste. This is a letter from Dr. Federici.

[00:20:17] Alex has been approved for our school program and it would be in his best interest to be considered for the program where he has already had success named Believe in You Academy.

Neuropsychologist, he's a savant. Nothing's being done. Mr. Ford, principal.

[00:20:35] Alex is making great transition. So when is the federal funding going to be sent to Believe in Your Academy? This is egregious people. - Thank you.

[00:20:50] Tammy C followed by Wendy Little. Okay, Tammy C is not here. - That was Miss C, I think.

[00:21:06] - That was Kathy Halperson. - Wendy Little, Chris Johnson, followed by Timothy Wright.

[00:21:28] - Well, this is awkward. Good morning, President Creasy, Vice President Hanson and Dr. Coons and members of the Virginia Board of Education. I am Chris Johnson, and I am honored to address you today in my capacity as a member of the Board of Directors for the Virginia School Board Association.

[00:21:49] I'd like to express our sincere gratitude to President Creasy for her insightful address at our Legislative Advocacy Conference last month. The SBA would also like to thank Dr. Coons for her time earlier this month in conducting an informative webinar regarding the all-in program.

[00:22:12] I would like to personally thank Dr. Coons for taking time to visit school divisions and meet and talk with students and staff. We in Prince George and myself were blessed to have Dr. Coons and Dr. Raley join us on our first day of school, so thank you.

[00:22:28] As you, the Board, reviews the recommendations to the standards of quality, VSBA encourages prioritizing these with the current needs of Virginia's public education system. Please champion strategies aimed at increasing the pool of qualified candidates who can fill teaching vacancies in Virginia.

[00:22:50] This includes alternative path to licensures and enticing practicing professionals to our CTE classrooms. Vsba joins with this board in calling for a full repeal of the SOQ position support cap.

[00:23:06] Vsba expressed our sincere thanks to the General Assembly for the significant progress over the last three years and asked that lawmakers make a full repeal of the support cap in the next biennial budget. Additionally, we request the board provide support to school divisions integrating work-based learning and workforce development programs into the curriculum.

[00:23:31] These programs are critical for Virginia's economic growth and have demonstrated success in helping children find their true north, which is different for every child. Gina Patterson of the VSB provided our board two important reminders.

[00:23:50] One was a book, Stick Together, Simple Lesson on Building a Stronger Team. And the second was the focus on being kind. Our desire is to modeling kindness and respectful conversation aimed at fostering understanding and constructive communication where opposing perspectives can be shared and considered to enhance the understanding and the outcomes.

[00:24:14] We are encouraged and hopeful that together we can craft solutions that are designed to meet the diverse needs of all our families in this great Commonwealth. Thank you. Thank you. Okay, next is Timothy Wright, followed by Annie Whitaker.

[00:24:38] Morning to distinguished members of the board. Thank you for the opportunity to voice my concerns. My name is Timothy Wright, Jr., high school educator, and I stand on behalf of concerned schools across the Commonwealth. The College Career and Civic Readiness Index, according to the VDOE, is an index that measures for the graduating cohort, student preparation for college and careers while in high school.

[00:24:57] The index is good, but how it is executed creates some inequities. With accreditation on the line, schools and divisions across the Commonwealth are scrambling to get their students to meet the index. My proposal is to rework the requirements to make the index more attainable. My first concern is the standard diploma is only 22 credits.

[00:25:14] many at-risk students possibly adding more courses especially ones that don't count towards graduation it's hard to justify with students as well as parents my next concern is the inequity index creates inequity the student can meet the index with one year in advanced academic course even if they barely pass however students that don't take such courses are required to take two or three years of courses and earn the industry recognized credential i'm sure parents across the commonwealth would not be satisfied to know that their student was required to do more just because they didn't take an advanced class i would also argue if we drill into the socio-economic diversity of the

[00:25:49] enrollees of these said courses we will find a lack of equitable representation across the board and we also need to remember the schools that don't offer all of these types of classes the inequity needs to be addressed and finally the rigidity of the index does not allow for student agency and exploration students take multiple classes and even have multiple credentials but don't meet the index because of sequence. In an email, the Assistant Superintendent for Policy and Government Relations addressed rigidity. In the interest of time, I won't read it, but as a licensed CTE teacher, I would have to respectfully disagree with the assertion that

[00:26:24] you won't have what you need unless you take two years. I've taught students for one year, and we all as CTE teachers have to teach all the competencies. We meet the requirements, and many students get an industry certification after year one. So to require two and three years, it's just not fair. So as it also pertains to JROTC, VDOE's decision to require students to take three years is a misapplication of the U.S. Code. The U.S. Code does not require students to take three years. It requires the institution or the school to offer three years. So there is no

[00:26:59] requirement for IRC in the U.S. Code either. CTE gives students exposure to employable skills that they can forge a path forward. Student agency and exploration should not be inhibited due to bureaucratic technicalities we should afford every virginian every opportunity to take advantage of what's available to them my recommendations create flexibility for student agency and exploration while making the index equitable for all virginians and i would advantage the board to give these recommendations your consideration every consideration proposal is a framework to help students and schools find success where the index doesn't become a stumbling block but a meaningful

[00:27:36] stepping stone to correctly credit students efforts is showing the college career and civic readiness thank you for your time thank you mr wright can you um provide your comments yes i have copies for all of them thank you so much i really do appreciate it um annie whitaker and then cheryl sims morning president creasy dr coons and board of education members i'm annie whitaker deputy superintendent of operations for montgomery county public schools and i'm here today with my colleague Dr. Jonathan Schultz, Supervisor of Innovation and Grants.

[00:28:13] Today we would like to share experience in applying for the school construction assistance program and ask that you reconsider the scoring criteria for the remaining $48 million before the closing date of the round 2 applications on November 28. In order to be considered for funding, a project must

meet a minimum score of 65 out of 100 points within the 3 indicators of the board developed scoring criteria.

[00:28:37] Susann Beier: divisions can score points to commitment demonstrated by an agreement by the local governing body to maintain or increase the percentage of local revenues. Susann Beier: dedicated to public education throughout the duration of the financing of the proposal of the project.

[00:28:53] Susann Beier: We ask that you reconsider the wording of this indicator regarding commitment, as it creates a de facto requirement for a shared revenue agreement between local governing bodies and school boards specifically places burden. on governing bodies who are currently providing funding in excess of the required local match, because those bodies must commit to being able to provide the same level of funding for the duration of the proposed project.

[00:29:18] We are fortunate in Montgomery County that our Board of Supervisors is currently able to provide funding above the required local match, but we do not feel it is realistic to expect those elected officials to provide a letter of commitment for funding that they cannot ensure will be available for the duration of the project, and may hamstring their ability to meet the unforeseen needs of their community.

[00:29:41] For large construction and renovation projects, bond repayment can extend up to 40 years. Instead, we ask that you reconsider that indicator for A commitment item one to read written confirmation that the governing body has provided the required local share funding.

[00:30:00] - A second issue that we'd like to draw your attention to is item 10 in the scoring rubric. This item is designed to support projects and divisions have higher percentages of school buildings in need of repair with points being awarded if at least 30 of the school buildings in the division are in poor condition however because the school for which scouts funds are being applied is not counted in this calculation smaller divisions with fewer schools must meet a significantly higher threshold to earn these points than larger divisions with more schools for example a school division with 64 schools can earn points for this item if only 31 of their schools are in poor condition but a smaller division with 10 schools must have 40 percent of their schools in poor condition to earn the same points this discrepancy

[00:30:38] increases as the number of schools in a division decreases so that the smallest divisions in the state must have 50 60 or even 100 of their schools in poor condition to order in order to earn any points for this item this inequity can easily be addressed by including the applicant school in the calculation in your handout we have included a table illustrating this problem as well as a suggested revision that would address it implementing these changes make a big difference for all of the divisions like Montgomery County that are very close to meeting the 65-point threshold. Thank you for the opportunity to address it. Thank you. Cheryl Sims, followed by

[00:31:11] Dr. James Fetterman. Who's on her way up? Dr. Fetterman, would you like to come up? Sure. Thank you. Good morning, everyone. I am Dr. Fetterman, the proud president of the Virginia Education Association, a middle school teacher from Accomat County located on the beautiful eastern shore.

[00:31:32] Thank you for the opportunity to speak today. I'm here to speak on the SOQ revision process discussed at the work session yesterday normally the soq revision process starts in february with several meetings of the soqs with committees multiple reviews discussions and revisions there is outreach to education associations and partner organizations the full board would get their first review in july the

second in september and the final in october this year has been very different all major stakeholder groups including the vea have submitted unsolicited feedback

[00:32:10] with detailed suggestions and i have provided those copies for your review but rather than consider any of that the board sent out a survey to all of the superintendents in late september asking them to rank vague suggestions of general areas of possible revise no detail no proposed language changes no estimates of state and local fiscal impact the survey data is fine but only 55 percent of the superintendents responded and no large school divisions such

[00:32:43] as fairfax loudon or prince william even responded the data just isn't rich enough to be basing all decisions regarding the soq revisions while we are disappointed that we do not see any of the feedback reflected in the survey the vea stands prepared to support any and all of the ideas that re-established putting our students first i would also like to remind the board that since not fully funding that the not fully accredited schools still receive less funding per student than fully accredited schools in the state this is your one opportunity until

[00:33:22] 2025 to put forth your values and ideas and show that you really believe we should be providing additional resources to these high-need schools not less once again we're disappointed but we're hopeful that you all will do the right thing we often hear you care about kids this is an opportunity to do that so please put words to action again my name is james fetterman proud president of the virginia education association and i approve this message thank you okay um let's go and see if those who were on the list and did not respond

[00:33:59] previously are here tammy c wendy little cheryl simms okay are there any other um speakers that would like to speak before the board today please come on up good morning my name is lachisha

[00:34:39] williams i've submitted a request with a brief statement to your online submission form for public comment um i'd like to come to you this afternoon this morning as a parent of original public schools a teacher and a community member and today i will speak to you as an individual i'm very concerned of the state and health of the buildings of richmond public schools as a teacher i've been sick for going on seven weeks it's been coming and going the mold the moisture the hvac systems are at an alarming rate of dysfunction it's getting cold we're not having

[00:35:15] any heat custodial workers are walking out with boilers that are rustic i pulled out the district policy because as a teacher i had to take 11 trainers that totaled up to five hours and 15 minutes i was unsure on where to see for these policies on that were applied to certain things for me as a parent it had hidden in the end of the training a copy of the school's policy of asthma action plans and conditions i have two children have chronic bronchiolitis and i've had submissions from pulmonologists for the last three years i've been subpoenaed to court because my children were

[00:35:52] hospitalized and they told me after 10 parent notes they were no longer accepting anything i had one of my children who was submitted and they said that he was going to be retained of his grade it doesn't meet this policy as a parent after i've provided all documentation that was required for my student i would like for you guys to review these policies to see if there's something that could be amended their parents don't face what i had to face other parents may not have the money to obtain a lawyer and for my child to be hospitalized and i had to go to court because he couldn't go to school of a district mandated policy that if you're sneezing you're coughing you have a running nose that you can't come and i feel like that contradicted itself

[00:36:32] i also reviewed that we have rich public schools local wellness policy there's nothing defined in this policy to combine these two things together to support students i'm also concerned as a teacher that if i keep taking off of work i keep being sick keep having to pay co-pays i'm going to put my family at risk and i demand that you seek and find and provide rich republic schools some sort of assistance and guidance that they can be supported on what they need to do and how they should move forward i feel like they've done all they can do to support me with what they have thank you for listening and taking the time thank you is there anyone else um here today that would

[00:37:12] like to speak before the board before we close public comment okay thank you all right um so we We will move to our consent agenda and go to Item A, please.

[00:37:34] Is that Mr. Chapman? President, would you like a motion that we adopt the consent agenda?

[00:37:54] I don't know that we need to discuss that. Okay. Somebody wants to remove them from here. Yeah, no, no, no. Can I have a motion to approve the items on the consent agenda as presented? sorry my eyes um do i have a second second um miss kilgore ah miss holton aye dr siebert all right mr hanson hi miss ashton hi dr northern mr sturdifan mr rotherham and chair votes aye

[00:38:30] okay so we are moving to the action items and that would be mr dickey come on up thank you good morning madam president members of the board and dr coons um two additional um literary fund loan release requests for today uh from giles county and suffolk city um these are loan requests or loan applications approved by doe from last year's uh initial application process we ran

[00:39:08] and the two specific projects being requested for a loan release today macy mclarity elementary and middle school about a eight million dollar uh renovation loan project uh and that loan would be payable over 30 years at two percent annual interest and then suffolk city uh a rebuild a replacement school for the existing john f kennedy middle school uh that loan request is for $25 million and that would be payable over 20 years at 3% interest rate.

[00:39:46] Both of the projects have met all requirements for release of a loan at this time. So requests for approval for release of these two project literary fund loans. Ms. Holden.

[00:40:03] Thank you. Mr. Dickey, I don't know if you were here during the public comment, but we heard from folks in montgomery county about some suggestions about the uh uh criteria of uh uh am i right that those don't whether or not their uh suggestions are appropriate does not impinge on this agenda item that that is correct yes that is for the competitive grant program their comments is so separately from this agenda item if you can uh you help us think through suggestions from montgomery county at the appropriate time whether there are revisions

[00:40:41] we should consider pursuant to their suggestions yes we we absolutely will provide feedback on that review their comments in detail thank you do any members of the board have questions on this particular item for mr dickey i have a motion to leave first review and approve the release of funds to giles county for macy elementary middle school in the amount of 7.85 million at two percent over 30 years and suffolk city for john f kennedy middle school replacement in the

[00:41:16] amount of 25 million at three percent over 20 years i'm here second miss kilgore ah miss holton i dr siebert mr hanson hi miss ashton hi dr northern hi mr mr mr rotherham and chair votes Thank you, Mr. Dickinson.

[00:41:40] Very good. Thank you. And item D. Loving Ryder.

[00:41:56] Okay. Is it working? I'll try. That one was working yesterday. Good morning, President Creasy, members of the board, and Dr. Poonz.

[00:42:15] Today, I bring it to you for final review, performance level appeals for Jenkins Elementary School in Prince William County, and John F. Kennedy Middle School and Suffolk Public Schools. You did hear this item on first review in September, so I'll provide a fairly brief presentation.

[00:42:34] The standards of accreditation do allow schools to submit an appeal on a performance level indicator. The intent of this appeal process is to provide some relief for schools who experience that usual extraordinary event that may impact performance on an indicator.

[00:42:56] For each of these schools there is an extensive appeals process noted in your attachments. We did have a committee, an internal committee review each of these applications for appeals.

[00:43:14] The internal committee recommended that these appeals be denied. In neither case do they really represent an extraordinary circumstance. superintendent's recommendation is that the board deny both appeals because they are not based on unusual circumstances and therefore do not meet special consideration under the intent of the board's regulations. Thank you. Are there any questions for Ms. Levingrider before we move on to this item? Okay. Can I have a motion to deny the appeals from Jenkins Elementary School in

[00:43:49] Prince William County Public Schools and John F. Kennedy Middle School in Suffolk City Public Schools? Moved. Second. Ms. Kilgore. Aye. Ms. Holton. Aye. Dr. Siebert. Aye. Mr. Hansen. Aye. Ms. Ashton. Aye. Dr. Northern. Aye. Mr. Sturdifant. Aye. Mr. Rotherham. Aye. Chair votes aye. And Dr. Koons.

[00:44:15] I think we have a few things to say, Shelly, before you move off of that podium. I just want to say a couple of words. In the past six months, I have witnessed some pretty Herculean efforts and been humbled and honored by the amazing expertise and knowledge of the great Shelly Loving Ryder.

[00:44:36] And her team also has wanted to recognize her. So I'm going to speak on behalf of her team as well. She will be retiring after 42 years at the agency where she began as a part-time research assistant in the teaching service. She probably knows more about this building and more about the Virginia Department of Education than any human on the planet. And I've been incredibly honored to see how hard she works and how much she focuses on every single student across the Commonwealth.

[00:45:11] She has spent her career striving to make the lives of children better. As we talked about yesterday, assessment helps us know where students are and what support they need, and Shelly has really worked diligently to make sure our assessment system can do that.

[00:45:27] She was here at the very beginning of the Standards of Learning, an item that is now the hallmark of this board's work, and that sparked her interest, according to her team, to making sure that assessment became an instructional tool. She became an assistant superintendent in 2001, has been a national leader with the National Assessment Governing Board as the chair of the State Policy Task Force on NAEP.

[00:45:53] In Virginia, she has helped pioneer online testing, technology-enhanced questions, and computer-adaptive testing. I have seen her in the 585 workgroup with her team and with us continue to push for innovation and assessment.

[00:46:08] that is thoughtful, intentional, and respectful of the educators across the Commonwealth, but she is also known for her dedication, her kindness, her patience, and most her grace. We are so thankful, personally, your team, and everyone around you for the four decades of national service to the Commonwealth and this board. And I promise you your phone number is in my speed dial, and we will find ways to keep bringing you back and helping us continue to innovative and assessment. I just want to take a moment to honor Shelly with me, with her team,

[00:46:45] with my cabinet, and tell her thank you for all the work that you have done. Thank you so much. Thank you very much. I've worked obviously with many boards over the years, but one characteristic that always is the same is how much you all care about children and teachers. And so I've really been honored to to work with the board over the years and with the amazing staff within the

[00:47:21] department. I know several of you have noted the quality of staff and I would like to reinforce that. You have an amazing team within the department. So thank you for your kind words, Dr. Gordon. Madam President, if I can just weigh in on behalf of the board, I think I can safely speak for all of us, but I personally haven't worked with you in so many different capacities for a quarter of your 40 years we're just going to miss you terribly you have made such a difference in the lives of our school children and our teachers and we are light years from where we

[00:47:55] started in terms of assessment and accountability in huge part because of you you've got big chapters ahead and we will miss you terribly your expertise and I'm so happy that Dr. Coons knows how to still find you thank you for your service thank you ms hilton mr rotherham um this is deserved obviously this retirement you you have have put in so much effort and care for this commonwealth but it leaves a big hole and and i'm i mean i've known you for a while now different boards and and i'm very sorry to see you go the diligence the care uh the attention you're a consummate professional

[00:48:30] and helping us uh get where we need to be to serve kids and and the team here is great you're you're correct but you leave you leave really big shoes to hole and fill excuse me and uh and a big hole in your service to the commonwealth it's just tremendous thank you mr brotherham anyone else so i will just say this shelly as a teacher in the classroom when we started online assessments you brought us along kicking and screaming and i'm pretty sure i might have said some things back then that weren't so nice but i'm gonna tell you you have innovated the way that we look at

[00:49:06] assessment in a way that is just so nationally recognized and i appreciate the work that you've put in the you've given your life to this and that is few and far between in these days and so for that i just say thank you and um certainly we want to be able to still reach out to you because uh your institutional knowledge you will be a legend there's no doubt about it in this field

[00:49:39] nationally so thank you so much for your service to the commonwealth to every school child in the commonwealth but most importantly in my heart to teachers and your support of us as we institute different assessments across across our schools so thank you so much thank you miss creasy i appreciate it thank you all very much okay so did alan raise his hand alan did you raise your hand i'm

[00:50:10] sorry okay sorry um okay our next item is item e good morning um i'm probably going to miss shelley the most um good morning everyone um president creasy members of the board and superintendent coons thank you for having me today this item on amendment six to virginia's consolidated plan under the Every Student Seeds Act Act has been presented to the board at previous meetings, and we are bringing this item back to the board following discussions with the U.S. Department

[00:50:47] of Education. This item is focused on Virginia's accountability system under ESSA. So I just want to refresh the board on this item. Virginia's accountability system under ESSA consists of eight indicators that are used to identify schools for federal support, which includes comprehensive, targeted, and additional targeted schools. Two of the indicators in Virginia's ESSA state plan for the accountability system are growth measures for math and reading. These growth indicators calculate growth as students who pass the state assessments, which are SOL and VAP assessments, and students who fail the state assessments but demonstrate growth by advancing at least

[00:51:27] one range on the progress tables. In the 23-24 school year, only targeted support and improvement schools are scheduled to be identified. In December 2022, USED approved a revised growth methodology to provide schools with flexibilities on how the growth methodology is measuring growth.

[00:51:49] This was approved under pandemic flexibility provided by USED. This methodology under Amendment 5 included both year-over-year growth as well as within-year growth. The within-year growth looked at fall 2021 Virginia growth assessment results and compared them to spring 2022 state assessment results. This amendment was approved by USED, but USED did communicate with VDOE that this methodology would only be approved for that school year as it was a revision under

[00:52:22] pandemic flexibility. So in the spring of 2023, the board revisited this methodology for the 2022 and 2023 school year and beyond and in june 2023 the board approved amendment six which moved back to the methodology in which grades four through eight students would be considered as making growth if they pass the sol pass the state assessment which again include sol and vap assessments or failed the state assessment but demonstrated growth by advancing at least one

[00:52:57] level from spring 2022 to spring 2023 the growth indicator though would also include students in grade three but since students in grade three do not take a state assessment in second grade the grade students three students could demonstrate growth by passing the spring state assessment or failing the spring state assessment but demonstrating growth by advancing at least one level on the student's fall growth assessment as compared to the spring 2022 assessment so that was submitted to us ed the amendment and us ed requested clarification regarding how grade

[00:53:34] three students taking the vap assessment which are the students with the most significant cognitive disabilities are included in the growth indicator following that request us ed virginia department of education reconsidered how grade three students were included in the growth indicators and to ensure that all students who fail a state assessment can be consistently included in the growth indicator and demonstrate growth are suggesting that we remove grade three students from the measure this would then leave four through eight students using a year-over-year

[00:54:09] growth methodology in this indicator so we are requesting this revision to amendment six in response to requests from us ed and to clarify the methodology and in an effort to consistently include all students who fail the state assessment and the growth measure we believe based on preliminary analysis this change in the growth indicator will have a minimal impact on how schools are identified for targeted support and improvement. And so with that, the Superintendent of Public Instruction recommends that the Board of Education we first review and approve the revised

[00:54:42] proposed amendment six, there we go, revised proposed amendment six to Virginia's consolidated state plan for submission to USF. Okay, any questions here for members of the board? Ms. Walton?

[00:55:00] Thank you, Ms. Carroll. If you could go back to the slide right before that, just to clarify, the second bullet says the measure includes all students but that means all students fourth through eighth but not third am i correct correct yes um and i understand from my conversations with dr kuhns that our state indicators will continue to include third grade growth measures it's just the federal indicators that will not is that right right thank you i have a comment but i'll save that for discussion other questions dr northern yeah i just need to understand it better i was

[00:55:39] tracking you the whole time but just tell me again um just tell me again in plain english why we're excluding grade three relative to that feedback yes do you want to or okay um the grade three measure is looking at the bga fall compared to spring zap does not have a fall assessment and so we do not have that type of measure for the val assessment program other questions okay

[00:56:15] before discussion i'm going to take a motion okay so can i have a motion to wave to approve waving first and wave first review and approve the revised amendment six to virginia's consolidated state plan i will say that again can i have a motion to wave first review and approve the revised amendment six to virginia's consolidated state plan so move second okay any discussion so thank you if i may just comment that we've worked really hard over the years it's something

[00:56:54] shelly lovingrider has helped us work on to have a true growth measure for third grade for years we simply didn't pay any attention to growth in third grade because we didn't have a measure that would work and then we got one uh and but apparently we didn't get one for our students with significant disabilities and so i understand what we're doing and why but i'm frustrated because this is not a good ultimate solution this means that our federal indicators are different from our state indicators and that's a as much as possible in our goal of transparency and simplicity

[00:57:32] we should have our federal indicators aligned with our state indicators so i will support this motion because i'm not hearing any alternatives in the short run but that's very disappointing as hard as we've worked to get um 30 and even if it doesn't matter i hear that i saw in the materials that it won't really make a whole lot of difference in terms of which schools are identified for federal mandated intervention um it's it does matter to the teachers it matters to the schools

[00:58:03] and to have third grade not the all testing grades growth should be recognized fully for all of our indicators federal and state that should certainly be our goal in our ongoing work on the accountability system so i'm i'm supporting the motion because i'm hearing that there aren't any alternatives but i'm frustrated because it seems like i mean other states do growth measures and we just somehow have not figured out how to do growth measures as well as other places and i don't i don't i don't get why we can't do better on it dr siebert i certainly uh agree and sense

[00:58:42] and and also feel the frustration that my colleague has raised um but i think this is another symptom of how we have a very well-intentioned system that has been adapted evolved and appended to over time and so i'm very excited uh to see what might come uh for from in the future of the just released 585 work group on assessment that will hopefully open the door to a a rethinking and a modernization of assessment so again i think there's there's still plenty of wonkiness here uh i agree with the frustration uh that compares nothing to frustration in the field about three year growth assessments overall and uh look forward to some some really good ideas coming

[00:59:21] from this board and hopefully some support from the general assembly in the coming session Dr. Goods? Yeah, I just want to reiterate that Shelly and Amy and Katie worked very hard with the federal

government to try and keep these aligned and work diligently to defend our system, but I do think the 585 work group task force, the recommendations there, the recommendations that this board has made around accountability and the stake in the stand you put in growth, I think will help us continue to move in the right direction, but I do want to give a nod to the team who worked

[00:59:55] very hard to try to get this as close as possible and just did not get any flexibility okay any other discussion points here before we vote okay miss kilgore ah miss holton hi dr siebert mr hanson hi miss ashton hi dr northern hi mr surdefin mr rotherham hi and chair votes aye

[01:00:27] thank you okay so we are moving on to item f mr chapman you president creasy vice president hanson members of the board and dr coons what we have for you in this item is new to the board although it's not new to the state of virginia this is a unified regulatory plan that is under being presented to the board in compliance with executive order 19 that was issued by governor

[01:01:01] Youngkin on June 30th of 2022. The basics of what's happening here is that Executive Order 19 is required by statute. Every governor must promulgate an executive order that governs under the Administrative Process Act, how regulations move through executive branch review, and the types of things that the governor would like in order to execute their regulatory policy.

[01:01:29] the board of education although it is established by the constitution of virginia one of only two bodies or agencies along with state corporation commission under my understanding that's established by the constitution is very firmly set as an executive branch agency by the code of virginia and that's in 2.2-2100 the board of education is named specifically as a supervisory board within the executive branch of state government and so compliance with the executive orders is is required under statute and under the law executive order 19 made a number of fairly

[01:02:05] significant changes to the regulatory environment within virginia first of all it created the office of regulatory management under the the governor's office and the office of regulatory management works to ensure that all regulations are reviewed for their impact on local government the regulated communities and private citizens and one of the initiatives that they started back in 2022 is this unified regulatory plan which mirrors a process in the federal government it's designed to increase transparency among the regulatory activities of the state for citizens so that what they can do is they can go and look at this regulatory plan and instead of having to continually

[01:02:41] go before a public body each month or each public meeting and review the agenda in order to see what's set out they can look at the unified regulatory plan see what the long-range vision is of that agency and be able to identify very quickly what what actions are of interest to them and so this unified regulatory plan is supposed to be due july 1st of each year so we're a little bit far behind and i think a little anxious to make sure that the board is complying with this particular activity if you review the unified regulatory plan you'll notice that most of the actions it's a catalog of things that we expect to be continued of activities that you've already

[01:03:17] seen i believe if i can draw attention to a couple of the items um that are maybe you haven't seen or maybe not be quite as familiar with we do have an expected regulatory activity that is currently listed for you know sometime in the the second quarter of 2024 which is the the unified measurement plan with early child care group this board has approved a number of different iterations of practice years for the vqv5 system and we expect that that will have to make the final jump into a regulatory uh you know chapter um under the authority of the board and so we have a nora

[01:03:56] you know sometime around there is when we think unified regulatory plan doesn't bind this body to the timelines established this is just you know for the public so that they can begin to to expect when they can see these types of things before the board and be on notice uh you know of that this is a living document and so as new priorities come up for the board we can resubmit this to the office of regulatory management for approval and make sure that's published you know with the department planning budget's website and so the public can stay informed um and so the the recommendation from the superintendent is that the board wave first

[01:04:31] review and um and approve this so that we can we can be in compliance with executive order 19. okay can i have a motion to waive first review and approve sorry i have a question okay please mr chapman thank you for that presentation you referred to code 2.2 2100 as a stating that the board of education is an executive branch i can't find that yes so if you go down it catalogs three different types of of state agencies one is an advisory board the second i believe is a policy board and the third is a supervisory board if you read that definition of a supervisory board you'll

[01:05:10] see that there's a statement saying starting with notwithstanding and it says the board of education shall be a supervisory board within the executive branch that doesn't say it no it doesn't say it says notwithstanding the foregoing the board of education shall be considered a supervisory board that's correct it doesn't say it's an executive branch agency well if you if you'll notice right at the intro to that statute um it says that brand that agencies within the executive branch of state government shall be classified according to that so i take that that taxonomy those three don't make any sense unless it applies to executive branch agencies i have a comment but i'll save

[01:05:45] that for discussion thanks thank you any other questions okay can i have a motion to waive first review and approve the unified regulatory plan as presented say it okay discussion does anybody have any comments to make here miss holton if i may uh uh i i'm channeling uh former president gecker

[01:06:21] here who was uh dug deeply into these issues and helped me understand that the board of it's on but i'm just not close enough to it the board of education is not i think under law an executive branch agency the department of education is an executive branch agency the board of education is not we are constitutionally created and we are not subject to compliance with the governor's executive orders we certainly can choose voluntarily to submit this plan and and

[01:07:01] I have no objection to the content of the plan. I think it's all advisory anyway. There's nothing binding in it according to the documents that have been presented to us. So I have no objection to the content of the plan, but I would like the minutes to note my objection to the suggestion that we are required to comply with the governor's executive order. And this is an issue that mr gecker helped raise on behalf of this board across different administrations with different parties he worked very hard to preserve our authority as a constitutionally

[01:07:39] created entity not subject to executive orders all that said i have no objection to adopting this plan as a voluntary response to the governor's request if we consider it that way i too um i agree with your comments i think my position here is that there is there's nothing in this plan that hurts us i think it's it's very well laid out as to where where we've been and

[01:08:16] where those things in our process currently sit so that's that's why i have no objection any other

[01:08:24] Other comments? Okay. Ms. Kilgore? Aye. Ms. Holton? Aye. Dr. Siebert? Aye. Mr. Hansen? Aye. Ms. Ashton? Aye. Dr. Northern? Aye. Mr. Sturdifant? I don't know if he's gone. Mr. Rotherham? Aye. And chair votes aye. And Mr. Chapman, you have another item for us this morning. Yes. Thank you, President Creasy. The next item is a presentation for first and final year of 2024 Board of Education meeting dates.

[01:09:06] You may recall that the office of board relations sent out a survey earlier about a month ago to try and make sure that these were cleared with the board. We have, I believe, reached an accord on quorums and and these meeting dates.

[01:09:22] And so what is being presented is the the dates that you know the the survey results showed that we would have quorum before those those meetings. After this item is approved by the board, we will make sure this is updated to the board's website and public notices go out so that the public can be informed of when the board will be.

[01:09:43] Okay, just for everyone's knowledge here I've had some discussions with Dr. Kuhn. We would like the board to consider removing the February meeting from this list since we will be in legislative session. Does anybody have an objection to that?

[01:10:03] seeing none can i get a motion to waive first review and approve with that amendment that the 2024 board meeting dates proceed as presented without a february meeting date i'll move second okay miss kilgore ah miss holton aye dr siebert mr hanson hi miss ashton hi dr northern hi mr rotherham all right and sheriff outside thank you very much mr chapman and um dr solari do you need

[01:10:42] us to set give you a few minutes to set up or are you good okay good morning dr solari how are you it's very good to see you thank you for everyone once again um yes thank you for the time let me see if i can advance this there we go no no that's not the right deck there we go thank you

[01:11:17] okay thank you so much for the time um i'm going to spend a little a brief amount of time updating folks where we are on the virginia literacy act and in particular talk about the curriculum review process some of you have heard this before but we have some new board members so we wanted to make sure that everyone is aware with where we are with the literacy act work so really briefly an overview of the virginia literacy act um we um in 2021 there was the virginia literacy act passed for k-3 and last year for k-4-8 um with the intent of ensuring that all children in the commonwealth have access to evidence-based literacy instruction to reverse

[01:11:55] the trends and literacy levels that we've seen in virginia that predated the pandemic and then also address learning loss, significant learning loss that we saw during the pandemic in literacy. To do this, Virginia must provide for the increasing number of at-risk readers. We are very lucky, Virginia, that we've had about 20 years of screening data in the K-3 space, so we were in a unique position when that pandemic hit to really see the impact of the pandemic on early literacy outcomes for children.

[01:12:29] so we had an unprecedented amount of children's scoring below benchmark and those in the early literacy space during and post pandemic we need to make sure that we're providing teachers with the instructional materials that is necessary to catch children up and also to teach children how to read in an evidence-based way aligned with the most recent reading science so the virginia literacy act did a few things it's pretty comprehensive um we talk about this um in this when we talk about this what we talk about is how you have to push on multiple levers simultaneously in order to see change in literacy so that is around how we prepare our teachers

[01:13:09] making sure that we are aligning our curriculum screening and intervention methods that children have access to every single day and when i talk about this back practitioners it's really pretty simple every child no matter where they go arrive in school no matter what zip code they live in should have access to evidence-based instruction and their teachers should be prepared to implement that instruction so that goes along with requiring professional development for our building level leaders our reading specialists and our teachers to ensure that they know the why and the how so why are we doing this and how do we actually implement evidence-based practice in classroom

[01:13:46] settings and then also making sure that we are partnering with our families um so the key components of the vla there's a definition for evidence-based literacy instruction in code and also science-based reading research and all the levers that we push on adhere to those definitions so that goes into how our curriculum how the professional development that we are providing for our educators how we're partnering with families to ensure that parents are engaged that they understand what it means when their child may not be performing at an adequate level in early literacy and that they have access to evidence-based resources that they can use in the

[01:14:24] home with with their children and then ensuring that our education preparation programs and licensure programs are aligned um with the with the um to ensure that the teachers that are being prepared that are going into our workforce um are prepared and know how to teach reading in an evidence-based way so the different levers um a high level timeline um it was over a year ago when when we first came to talk to the board about the curriculum review process, we kicked off the first cycle of curriculum review last fall.

[01:14:56] We also, in the winter of 2022, there was an advisory board put together. It has 33 members of different educators and stakeholders across the Commonwealth. We meet quarterly with that group to update them on progress and also to get feedback from the group.

[01:15:12] We, for example, have brought to them before We engaged with our training of the reading specialist over the summer. We brought to them the idea for the content, what we thought we were going to do, and got really valuable feedback from that group around that process and and the materials we were implementing.

[01:15:30] We also last year brought to you all the first cycle of curriculum review, and through that process, 8 core curriculum programs were approved by the board. um we began our second round of review for core curriculum supplemental and intervention materials this fall and we are currently in the middle of that process so we are here to talk about it but we're not ready to present a guidance list yet um that will come very soon next meeting will be the in november we're going to have the the list for the core curriculum and then in subsequent meetings

[01:16:08] we will have the list for the supplemental intervention programs this summer we also trained around 1500 reading specialists across the commonwealth in scientifically based reading research and evidence-based literacy instruction it was a two-day training for the 1500 reading specialists and it was a two-day kickoff that then led to a year-long professional development program that they will engage in over the course of this academic year and they are engaging with our literacy coaches out of uva they are going through course content around um reading science

[01:16:45] but also really the implementation of this literacy act so knowing the why but also how do our reading specialists support our building level leaders and our teachers to implement the literacy act so

some accomplishments today i spoke through a little bit we designed and launched the cycle one review process um we've expanded the review process into cycle two we're in the middle of that right now the expansion is that because the literacy act four to eight passed to last session the first round of review only reviewed k to three curriculum and now we've had to expand now we're expanding that k to five for core curriculum and then k to eight for supplemental

[01:17:24] intervention programs we trained 1500 reading specialists we launched the work group and we've also this year began piloting in 17 school divisions the revised literacy screener which i spoke about last time i was here and also we've tried very hard to increase general awareness about the literacy hack through webinars and memos and meetings with all those different engaged stakeholders we've we've provided many opportunities for engagements um making sure with the with the advisory group that part of what we ask them to do is to engage with their own stakeholders they learn stuff at our meetings and we ask them to help disseminate that to their the folks that they

[01:18:03] work with every single day we've engaged 125 literacy experts more than 125 literacy experts across across the commonwealth in the curriculum review process so while this process was it was developed in collaboration with the department and our office at the university of virginia the review processes the curriculum are being vetted by virginia educators and that's really important in this process that there is buy-in and there is folks doing this work and working alongside us to make it happen so an overview of the instructional review process um the intent

[01:18:39] here is that the results of the review process that we are currently engaged in right now will provide a vetted list to both the department and the board of board of education for approval we want to make sure that we are providing high quality reading instruction materials for every student in the commonwealth ensure that evidence literacy curriculum is implemented during the entire literacy block so that that core curriculum is based in evidence and also ensure that our teachers feel supported and well equipped to meet student needs a little bit about the development

[01:19:16] of rubrics we actually started developing the rubrics for the curriculum review process in april and may of 2022 i worked in this building i think i said last time in a windowless room with folks from the department alongside folks from uva to start the development of a rubric process. We engaged with national experts. We engaged with other states who had been through this process before us to learn from them, learn from what went really well and what maybe didn't go so well. And then we also vetted the rubrics with core curriculum. So we took a rubric. It was

[01:19:51] an iterative process. We said, does this rubric actually work? Our rubrics were also reviewed by Virginia K-12 educators and other colleagues of mine in higher education, literacy, faculty across the commonwealth before they were finalized the rubrics were posted online and shared with vendors in advance of the review process so they knew exactly what we were asking them to do and what their what their product needed to have in order to be vetted successfully and then we also made sure that the rubrics aligned fully with the law and the review process is facilitated through the

[01:20:27] through uva at vlp in collaboration with the department currently we are looking at k-5 core instructional programs and k-8 supplemental and k-8 intervention programs um the review we had over 400 people interested in being on our review teams and we still have people emailing us weekly wanting to be on the review team so there was a lot of engagement in this process every reviewer that made it onto a

team so over 125 was interviewed and we made sure that they understood what scientifically based reading research was what evidence-based literature instruction was

[01:21:03] every review team has a facilitator guiding the process and the facilitators meet twice a week to make sure that they are all on the same page so that the review process standardized across different groups of reviewers and facilitators the reviewers independently evaluate the programs using the rubric and then they come together to come to consensus on the rubric and the facilitators help that process along and then if something pops up that is maybe something they need to discuss with the with the other expert facilitators that's what happens in those facilitators meeting

[01:21:40] to make sure that there's standardization across the process and it's normed okay the core program review is a two-phase process phase one is really a quick look at the program to make sure that it doesn't have any of the components that we know are not aligned with reading science and evidence based literacy instruction we are it's really very clear if you look at the rubrics and if you look at the guidance for phase one that that's what we're looking for um because it's we're not going to move a program onto phase two if they have some of the components that we know are not aligned with the most recent evidence base and how we teach reading um the phase two process

[01:22:19] and um what if a program makes it from phase one to phase two phase two is much more in depth so at that point we're going through every single item that they give us at every single grade level it is it is extensive and it is it takes a lot of time um if you meet a reviewer on the street thank them because they have invested a ton of time in this process um make going through every single material and there's any and if you know core curriculum you know that when a teacher gets it it's boxes and boxes and boxes of materials so we are looking at everything um so phase two is a much

[01:22:55] more robust and much more in-depth process vendors oh we're jumping forward here um can't go back vendors do have an opportunity to appeal so if they don't make it through phase one they can appeal and they can if they think that we made a mistake they can tell us where we did and we will go back and look at it and we will review again um that is true for phase one and phase two almost every single vendor that has received a no has not has appealed and we have re-engaged in the review

[01:23:31] process for them um and that is true at phase one and phase two the other thing we we're making sure that we are aligned with the textbook adoption process um so that when the final list is available for divisions it's easier for them to procure the the materials from vendors so we are requiring vendors to complete all the certification forms demonstrating the relationship between what they're teaching and the standards of learning and making sure that there is time for public

[01:24:04] examination of the materials as is necessary for all textbook adoption reviews so just to give an up to where we are on this cycle to review process so um we received a lot of programs this time we see we received 14 core programs 60 supplemental programs and 48 intervention programs that was way more than what we anticipated which is so it's a lot of work but the good news is we can feel pretty good that we're doing a comprehensive review of what's available out there from vendors

[01:24:44] we have a lot of people reviewing right now for that reason um the core instructional program review should will be completed and the list will be brought to you all um at the november board meeting so that is already next month and then the supplemental programs intervention programs will be in early winter and spring of next year um we are trying to get this done as quickly as possible because we know divisions are ready to purchase if they need to purchase they want to know that and they're ready to do

that process and also we know that adopting curriculum is not a one month thing here it takes months and also we have to train teachers to implement these programs so

[01:25:23] there is a time and urgency attached to this so next steps the the board will review the recommended core instructional program guide at the next meeting we will have that for you all we will present that and remember these get approved by grade level so they're not just approved k-5 because our rubrics are by grade level so there was a couple cases last time where some curriculum were approved just k2 not k3 and that might happen again we may come to you and say okay

[01:25:59] this particular vendor got approved for k2 three but not four or five so just that might happen materials will be available for public review for 30 days and then also the cycle to reviews of the The supplemental intervention programs will be in early winter, spring, and the VDOE in partnership with VLP, which is the office at UVA, will launch to curriculum adoption supports for divisions because we know that getting to the list is a lot of work, but it's just the first step.

[01:26:30] really have to be careful about how we implement this and make sure that division teachers are supported in that process. Throughout this year, we have statewide literacy coaches that are supporting REAM specialists to prepare for the classroom implementation. And our literacy coaches are well-versed across many core curriculum and understanding that the divisions that they support, they have choice and they'll be able to choose whichever one from the list that they want. So are developing their ability to support the implementation of different curriculum because

[01:27:04] that's important in making sure that we're implementing successfully i think that's all i have yes that's all i have happy to answer questions thank you dr salari do we have any questions dr northern yeah um so we have eight already approved is that right for k to three some k to two and others k to three okay can you just name a few of those this is predates me yeah so the the it is available publicly but um and the ckla is one of them hmh is another one of them and

[01:27:42] there's there's other ones i don't okay and what's and i and the those ones that were approved k to three they all put in for four five okay so the hope so if they are approved k to five we that will be helpful for divisions that are have already decided to make that purchasing decision okay so heart ck la um i'm aware that knowledge works is coming out with a rubric by which to judge a curriculum that is content rich knowledge base so and so forth super mental um is that part of what's being reviewed because i feel like sometimes that knowledge piece gets it's lost i

[01:28:19] think i really appreciate that question absolutely so we're reviewing we're reading across multiple um construct areas one of them is background knowledge and um content knowledge it's of of course, phonics, it's phonemic awareness, it's alphabet knowledge, it's vocabulary development, language development, and then background knowledge and content knowledge is another piece of it.

[01:28:38] Okay, great. And how many, I mean, I guess I just now want to understand a little bit about the process. So how many, is there some number you're looking to approve, or is it just however many meets? And then what's the, I know that you're coming up with a guide, but sort of what's the monitoring um bit of this look like in terms of the you know the take up so for me there's no like number there's no number that we have to have to approve if if a program meets criterion we're going to bring it to you all for approval and it's the board's decision of what gets approved

[01:29:15] um i might pass it to superintendent coons to talk about monitoring the uptake yeah i think one of the things that we are most excited about is transitioning from the amazing work emily has done around implement you know selection of materials what is research-based reading look like what does evidence-based instruction looks like what do we know about brain science today she has done a phenomenal job translating that with our team to what we select in materials but also in training our reading specialists the agency is now um in working with several national

[01:29:51] experts to provide implementation pathway kits for our superintendents we will launch on october 30th at the vast conference what it means to be a literacy superintendent and start talking with our literacy superintendents um emily is working with us to continue to think about teacher training in those spaces i think the role of the agency is to think about the vertical spine what does a superintendent do as they're implementing literacy what does a principal do as you're implementing literacy i've had lots of conversations with the sba sitting in the back about how important literacy is but i think it's our role now to talk about and socialize what high quality

[01:30:29] literacy instruction looks like and then give each stakeholder a toolkit and support them in making those good choices and making sure we're all in it together and making sure we're working collaboratively so we are in that phase as an agency as emily has really led the work in establishing the criteria around the evidence in the national science work that's been done our job is to help the practitioners and think about what it looks like in their school divisions and in their classrooms so given the importance of evaluating the success of this huge initiative and i know that we're working on coming up with with our data systems at the department will we

[01:31:07] be collecting any data on which um districts are using so we can evaluate the success of various curricula yeah we go for it i mean um so a part of literacy act is that all divisions are required to have a division literacy plan wherein they report which curriculum they're using for core supplemental and intervention so that will be available that those data will be available okay

[01:31:32] thank you other questions thank you dr thank you so much for your time being here okay come on up please yeah sorry dr andy armstrong wasn't able to be here today because he is traveling about the state um actually i think on a lab school visit right now or potential candidate visit um but as most of you know i've been involved with the college partnership laboratory school

[01:32:10] standing committee along with mr rotherham and mr hanson and just wanted to highlight a couple of of items from this report that you have about every day um the first is kind of an exciting piece of news that germana community college and the university of mary washington have both submitted applications to the standing committee that have been reviewed they've been cleared for first review they're currently I believe still in the 10-day public comment period we expected those to go to the standing committee's meetings in November in early November and then with the hopes that they will come before this board soon after that at a meeting for consideration

[01:32:51] the standing committee was very very enthusiastic about both of those and so we're very excited for them you know to move before you uh also you'll notice on that uh in the update a standing committee has um as this board just did approved its 2024 meeting schedule um and just so you have an idea of the the very robust and aggressive schedule that this uh the standing committee is pursuing because we expect that there are a lot of applications still coming um you know before the standing committee with the goal of getting those uh you know as many of those before you as

[01:33:24] As possible before the the end of the about June 30th, and I know that's the end of the fiscal year. But really that's so that we can have as many of these approved to start as are able by the beginning of the next school year. So there's there's a lot of documentation, and just to to speak to the work not only of the department.

[01:33:43] But in case you're wondering what Mr. Rotherham and Mr. Hanson do in their evenings. These applications run between 50 and 150 pages each, and we have about 10 or 15 more left in the pipeline. And so, you know, there's there's a lot of work to be done, but we think there's a lot of really exciting opportunities for innovation in the Commonwealth that are still still yet to come before you.

[01:34:02] Thank you. Any questions or comments on this particular presentation report, Mr. Hanson? Again, Mr. Chapman's last note on the workload, it's just grateful for the leadership of the team, but also of our chair, Joan Wodiska, and other members to participate on the board.

[01:34:31] So just it's a team effort and appreciate the leadership. Any other comments? I would second Mr. Hanson's comments and also urge people to please just read. I mean, there's a number of these coming through. They're from all over the Commonwealth, which is really exciting.

[01:34:47] We've got the one right here in Richmond that's getting off the ground, but they're coming from all over, and it's just a really exciting initiative. And I think, you know, in the hubbub with so much stuff going on, it's easy to overlook, but it's just a fantastic partnership initiative and ability to give parents and kids more choices and options in the public education sector.

[01:35:07] Northern, did you have something? I was just curious if there are particular shared challenges that you guys are seeing in the applications or, you know, particular things that are looking really strong. Just generally, as you look across the applications, the sort of strengths and weaknesses, if you can speak broadly to those.

[01:35:27] Anybody? Mr. Rotherham, do you want to start? Sure, I saw Mr. Chapman coming up with you, but I'm happy to. I mean, I think, look, I think there's a couple of things.

[01:35:44] One, if it was easy to start schools, everyone would have one, right? And so you've got some of the basic stuff, and we've seen this in chartering. Ms. Ashton obviously knows this from several things she's done in her career, And lab schools are distinct from charter schools with some of those same startup initiatives. That's the first piece. I mean, I think second, we are holding a high bar. And I think Ms. Wadeska has done just a tremendous job on making sure that there is full compliance. This is not like a license to do whatever you want. It's a license to innovate within a framework of public education. And that's been challenging at times. And then third, just is the plan, you know, sustainable and what does it look like?

[01:36:20] And again, like there's there's lots of good ideas, getting that idea to like, what is the actual execution look like? That's a challenge. That's a challenge on any kind of project. And I think the staff's been great at supporting and so forth. But those are the kinds of things that that people are coming with. You know, even just, you know, we've got some good resources put against it through the way the program's set up.

[01:36:38] But it's just it's it's just this is this is a lot of work. I think you asked, what are some of the challenges? I would say some of the strengths I've seen is the way in which people are coming together. Historically in education, we have K-12 schools run by K-12 boards with K-12 leaders. These lab schools

provide opportunities for such a cross-functioning set of individuals really rethinking and innovating about what school means from a governance structure to a sustainability structure.

[01:37:12] like how are we going to sustain this and while that's a slow start to figure out how that's going i think what we've noticed over the past month is a real elevation of really strong projects that are really intentionally thinking collaboratively so i expect us to see some really innovative things that are coming together as so many stakeholders are coming together and just want to give a huge shout out to the vcu residency code rva lab school which is fully executed and on its way and we're very excited about that miss miss holton yeah and in fact the rva lab school is

[01:37:49] it is an existing school it's basically two programs combining the existing rva code code rva and the uh richmond teacher residency vcu existing are evolving and becoming a lab school but i think that points out both a challenge well and an opportunity but that to get a new school stood up this quickly it's uh just very very challenging to evolve an existing successful program into something that uh meets the lab school uh programmatic definitions can happen

[01:38:27] more quickly and so it's not surprising that that's the one that's i think the only one that's come before us for full approval is that right and they they did a terrific job presenting to us maybe and maybe right before you came on although this board should expect madam president to see some additional applications in the near future on our on our full board agenda for approval yeah other comments here thank you mr chapman appreciate it okay so we are about ready to wrap

[01:39:02] this up um and i would just like to say that i think we are in record time uh finishing our agenda for the day so uh at that that being said we are now at the point of discussion of current issues um does anyone have something that they want to discuss or dr coons you can have time here too if you so choose anyone consultant i do have two matters i'd like to just make sure the board is

[01:39:40] aware of and and uh ask uh dr coons possibly to come back to us with further information as appropriate the first relates to iTeach you all know that i've been concerned all along about the special ed uh endorsement within the iTeach program we we are desperately in need of more special ed teachers and our divisions are desperately in need of more flexibility and thus it makes a lot of sense to for divisions to turn to iTeach for special ed teachers if but only if they're preparing them well enough that they're actually going to stay and do a good job serving

[01:40:17] our students. And I am sorry to report that we learned through the Richmond Times Dispatch a few weeks ago that the staff prepared a document evaluating iTeach's special ed endorsement programs back in March and found that they were woefully inadequate to meet the minimum state requirements for content for special education teachers. There was a document that staff produced a rubric on that topic, as they did for all the other endorsements. The rubrics they presented, they prepared for all the other endorsements were presented to us as part of our

[01:40:57] deliberations. The rubric on special ed was withheld from us. And I will note that that was before Dr. Koons and her team came in, but they were apparently produced and not, and withheld was the word the the newspaper used uh and uh uh that's very troubling and i'm sure that that won't happen again under dr kunz's um administration because she's been so forthcoming and and communicative with us i will say that the uh and i have asked uh been asking for many months now for evidence that i teach has addressed those deficiencies and just i think monday night dr

[01:41:36] Coons got me some additional syllabi that I teach has finally applied to the department. On their face to my lay eyes, some of them appear to be maybe adequate and some of them appear to be very bare bones. The one for the advanced disabilities teaching students with the most severe disabilities basically selects a textbook and tells the students to read it.

[01:42:06] it's got a little bit more than that but not a lot more than that and um i would like and but i do understand from dr coons that um that uh i teach has contracted with csep which is a regional group in the tidewater area that i think is well respected in the special ed area to work with them to help build up that program um so that's a good that's a good step in the right direction but i would like to ask specifically that now that they have produced additional documents that we go back and ask staff to update the rubric that they did in the spring finding that iteaches programs failed

[01:42:44] to meet the minimum requirements and tell us you know i'm not really competent to evaluate the current materials but staff is and i think we should know that going forward especially since we weren't informed initially and our divisions should know uh and and this work group that i i hope will also follow up on this topic because how we prepare and how we attract retain and prepare special ed teachers has got to be a crucial part of that work group and if this flexible program is successful it will be a huge win for our students and if it's uh if it's inadequate we

[01:43:21] need to know that sooner rather than later dr kentz um thank you miss holton i i appreciate the acknowledgement that the I teach package that was brought to the board was prior to my administration also we've had change in leadership in the assistant superintendent over educator prep to make sure that we have good diligence in that space we have as the board directed us in July to work closely with I teach to make sure their materials meet the absolute expectation of both the board the agency and our school divisions who are contracting with iTeach

[01:44:00] we have been in close contact with iTeach communicating those expectations communicating that they did provide us the contract with CSEP that they are working on to evaluate those materials and move forward with those materials I think it is very important for us to use experts in the field and understand what our special education teachers need and what they should be doing and as part of the evaluation that we received from our experts we have to continue to develop what we're doing inside the house so i'm happy to report back what we feel is appropriate on evaluation and our progress with iTeach to the board as the board requests but want to continue

[01:44:36] to work with iTeach as it's a very important solution that many of our school divisions are using to put highly qualified teachers in their classroom thank you and i do have one other matter i just also like to make sure everybody saw the letter we got from one of the really there's four or five major publishers of math textbooks that have been approved in virginia in the past and one of them has written us a letter basically saying they can't meet the the deadline uh that the department has set out and proposing some solutions and i believe one of the solutions

[01:45:15] is essentially asking for that they're I don't know what it would mean to have rolling submissions but but ask proposing some solutions that I'm hoping we can hear the department's response to whether they're workable whether we hear that now or next month may be more appropriate when we're after the deadline for submission so we can see but there really are only a small number of these companies and this is one of the the major ones apparently they're the the suvas name is it's the envision materials uh i believe that they submit uh and i will also just add that the hope and mitlin

[01:45:53] fellow who is also one of the one four or five that have prepared uh submitted materials successfully in virginia in the past that came before us last month caught me in the hallway as he was leaving and what we heard in here about the that the that the textbook companies would be able to revise their materials later in the process if needed that that was not accurate by his understanding and i don't know where they are on it maybe they figured out how to meet the deadline and we'll know soon because the deadline is almost upon us so but by next month maybe it would be appropriate

[01:46:30] to have an update on have we got enough submissions and how's the process going i'm happy to give you an update right now miss holton as a result of the board you recommended that we have a phase one and a phase two we have a phase one and a phase two option so our publishers can submit during phase one they also will have another phase two we are in the process of posting that information and holding an open meeting for all the publishers to notify them of phase one and phase two opportunities i would disagree that there are only a few publishers as emily salari just talked about the number of publishers who are submitting resources for the ela textbook

[01:47:08] process there are an amalgam of publishers out there but we want to make sure that we have the highest quality publishers and in response to the board requests to make sure that we're giving publishers the opportunity to meet our standards there is a phase one and a phase two process for publishers to meet that we have also received letters my team has received letters from publishers who are excited and can't wait to get started so i know that two of the publishers have reached out to the board i want to recognize that those vendors have the same opportunity and we've accommodated the phase two for the vendors who are interested in supporting our school

[01:47:42] divisions may i respond i'd prefer this not to be a back and forth please just with a brief question so that that's terrific new news uh the the phase one deadline is the one that's the end of october but the the phase two will have a later round deadline for can't speak to deadlines my my staff is not with me to answer that i don't mean what the specific deadline is but am i understanding when you say phase two people who uh companies that don't meet the october deadline will have a later opportunity to submit absolutely during this school year absolutely there'll be two

[01:48:19] deadlines for submission and as to the number of companies i'm just looking at the list the math textbook list that we approved in 2018 and there's five companies on there many of them submit in multiple grades in fact most of them submit in multiple grades like there were five companies on that list any other items for discussion i just want to clarify this point because my understanding madam president and secretary is exactly i read that letter as well we received it the other day electronically and it seemed like what they were asking for it was actually something we were already accommodating so i was i i was a little bit surprised to to see it and it spoke to

[01:48:57] that there just seems to be a little bit of confusion here as there often is around these things and and we're actually doing precisely what they're asking for and the end result's going to be both flexibility and we're going to have some good options to choose from dr siebert um not on this topic just wanted to take it as part of the meeting to say thank you for the opportunity to participate remotely also i wanted to thank uh dr coons and her team uh yesterday at the end of our work session she made a pretty significant announcement about convening of the work group local special education issues uh that release was set out concurrently at the beginning

[01:49:33] of our meeting today it is a it is a good good group of people she's assembled and i certainly appreciate her proactive leadership in that regard thank you president are we going back and forth well just i i didn't understand that there was going to be a phase two submission so if this company didn't understand it I also didn't understand it maybe that's new information or maybe I misunderstood but I think that does answer their concern and as I said earlier we are getting ready to have an open meeting with all publishers to go through that process and go through those documents that takes some time it takes some time with the attorney general to make

[01:50:11] sure that we're meeting all those expectations so after the board voted last month we've gone through that we're getting ready to host those meetings and release those opportunities for publishers. Dr. Northern. Different topic. This is probably pie in the sky and I have no like substantive idea to bring it forth but obviously we're going to have you know a big election in November and I feel like the bipartisanship and education not only in this state but across the country has largely been lost and I would just encourage us as we you know usher in all these

[01:50:49] new legislators that we would try to have more of um develop more of a relationship with them um and just you know education has always been a mutually important issue to everyone no matter where you lie politically and so to the extent that we can discuss this in the future in terms of how to develop stronger relationships with our general assembly um especially as we're talking about so many new advancements among this board and what we'd like to do in K-12 education in the

[01:51:20] Commonwealth, that we would try to get that communication line back and forth going. Thank you. And I would just say that that's certainly one of those goals that I have as president for this board, that we do engage more significantly because we are so directly impacted as a board um than our schools and our school divisions so that is one of the goals that i have for for us

[01:51:51] as a full board to be more engaged as the future unveils itself to us about our relationship and how we are continually collaborating with the general assembly so that that is my hope um open communication continual collaboration and working hand in hand to continue to do what we can to improve student outcomes to make our schools the very best that they can be um and and to do what's right by every student in the commonwealth uh mr rotherham i wholeheartedly endorse mcnortham's

[01:52:31] plea for bipartisan or non-partisanship whatever sign me up i do want to just walk back a little bit to where we were a second ago i just i mean i'm a little i'm a little concerned i want to make sure we don't get in a posture vendors are an important part of the sector they deliver important services they're important partners they work for us though not the other way around they have their own interests where they are in production cycles on materials their own and so i just want to make sure i think it would be an odd posture for this board that every time we get a letter from a vendor that we immediately like snap to we should respect their views we should work with them again they

[01:53:06] are collaborative partners but i think i i worry i'm a little uncomfortable if someone sends a letter and we immediately must because these are commercial entities with commercial interests we're a public body with public oversight and i think we need to make sure the lines there are clear and it makes me a little uncomfortable every time someone says a letter or you know says boo we all jump um we should take that into consideration we should hear their feedback to the various mechanisms but we should also keep our eye on the ball in terms of what we're what we're what we're trying to do here and recognize that these are commercial entities with commercial

[01:53:41] interests thank you other comments or discussion hearing none we're adjourned